Sucheta Omprakash Goenka vs Serious Fraud Investigation Office ... on 1 June, 2022

Author: Asha Menon

Bench: Asha Menon

* IN THE HIGH COURT OF DELHI AT NEW DELHI

% Pronounced on: 1st Ju
+ W.P.(CRL) 612/2022, CRL.M.A. 9192/2022

SUCHETA OMPRAKASH GOENKA ....

Through: Mr. Pramod Kumar Dubey,
Advocate with Ms. Ranjee
Rohatgi, Ms. Shweta Sing
Samten Doma, Mr. Anurag
Ms. Trisita Parashar & M
Narayan Sarkar, Advocate

versus

SERIOUS FRAUD INVESTIGATION OFFICE THROUGH THE
INVESTIGATING OFFICER & ORS. ..... Respondents

Through: Mr. Anurag Ahluwalia, CG
Mr. Abhigyan Siddhant, G
Mr. Arib Ansari,
Prosecutor (SFIO), Mr. T
Srivastava & Mr. Sandeep
Law Consultants (SFIO).

CORAM:
HON'BLE MS. JUSTICE ASHA MENON

ORDER

1. This order will dispose of the application [CRL.M.A. 5243/2022], whereby the applicant/petitioner seeks permission to travel to Dubai.

2. The writ petition has been filed seeking writ of certiorari and mandamus directing the Serious Fraud Investigation Office (SFIO), Delhi not to restrict or impede the foreign travels of the applicant by issuing various directions in CR No.14/2018, registered by Economic Crime Branch under Sections 409/420/120B IPC. It is the case of the applicant that due to lookout notices issued by the SFIO, Delhi in respect of the said crime No.14/2018, she was unable to travel freely to Dubai, despite the permission granted to her by the High Court of Bombay.

3. Mr. Pramod Kumar Dubey, learned senior counsel for the applicant, submitted that in respect of the lookout notice issued by the Economic Offences Wing (EOW), Mumbai, the Bombay High Court

had, pending disposal of the writ petition, granted bail to the applicant and permission to travel to Dubai. However, when she tried to leave the country pursuant to this permission granted by the Bombay High Court, she was detained as the SFIO Delhi office had also issued a lookout notice. In the circumstances, the petition has been moved.

4. By way of the present application, the applicant is seeking permission to go to Dubai for a period of 8 weeks. Learned senior counsel for the applicant submitted that she being in her early 40 s was seeking to settle into matrimony, for which purpose, she wished to go to Dubai. It is his case that the proposals had to be negotiated, so that she could marry at the earliest, but on account of her absence from Dubai, nothing had fructified. Learned senior counsel further submitted that as this involved humanitarian consideration, the request should be viewed compassionately by the court and permission granted.

5. In opposition Mr. Anurag Ahluwalia, learned counsel for the respondent No.1/SFIO submitted that the applicant was a high flight risk. She was the principal beneficiary of the diversion of funds by her father and she was not cooperating with the investigations.

6. To this, learned senior counsel for the applicant submitted that the companies under investigations were Twinkle Enviro Tech Pvt. Ltd. („TETPL), Royal Twinkle Star Club Pvt. Ltd. („RTSCPL) and Citrus Check-Inns Ltd. („CCIL) in which she has absolutely no role as she was not even a Director. It was submitted that though since 2018, the applicant has been in Mumbai, she was called for investigations only in 2021, when she fully participated in them. As regards the details of bank accounts located in Dubai which were in her name, namely, (i) Mashreq Bank, Sheikh Zayed Road, Dubai, (ii) National Bank of Fajairah, Bank Street, Dubai, (iii) National Bank of Ras Al Khalmah (RAK Bank), Makhtoum Street Branch, Dubai, (iv) National Bank of Ras Al Khalmah (RAK Bank), Makhtoum Street Branch, Dubai & (v) HSBC (UAE), Ibn Batuta Branch, Dubai, since she had lost her Residence Status in Dubai, the banks were not willing to disclose the details online and, therefore, if she was permitted to go to Dubai, she would also be able to furnish all details, after collecting the same personally.

7. The learned counsel for the respondent No.1 further submitted that the three companies, namely, TETPL and CCIL had collected a sum of Rs.12318 Crores from the public in the guise of "Holiday Plan Schemes"

> and "Time-Share Holidays" from investors during the period between 2000 and 2015 and only a sum of Rs. 6737 Crores were returned to these investors. Investigations had revealed that the money had been transferred through RTSCPL and 86 other subsidiary companies, collectively referred to as Companies under Investigations („CUIs) in which the applicant was a Director. She was discharging key functions including finalization of the financial accounts of the company. She had received funds from her father Sh. Om Prakash Goenka through unsecured loans and investigations were held up for want of year-wise loan taken by the applicant and her family and 86 CUIs with details of interest paid thereon. During questioning, she had claimed that she had only one bank account in "RAK", whereas, her father revealed

that the applicant has five accounts in Dubai. Since the applicant was deeply involved in all transactions and the investigations were continuing and would require further time and her presence would be necessary to confront her, she should not be allowed to leave the country.

8. I have heard both the learned counsel. The question whether the lookout notice should be quashed or not and whether the applicant would be entitled to the relief, as claimed in her petition, are yet to be decided. Since by way of the present application, the applicant seeks to go to Dubai for very personal reasons, the application is allowed, permitting the applicant to travel to Dubai for a period of 8 weeks between 1st July, 2022 to 26 August, 2022, subject to the following conditions :

(i) The applicant shall furnish the details of the place of her residence in Dubai and her contact number during her stay in Dubai to the Investigating Officer;

(ii) The application being specific i.e. the permission to travel to Dubai, it is directed that the applicant shall not go to any other country or city other than Dubai during this time.

(iii) The applicant shall make no effort to dispose of assets that belong to her or the CIUs during her stay in Dubai.

(iv) The applicant shall not have any transactions in the banks, namely, (i) Mashreq Bank, Sheikh Zayed Road, Dubai, (ii) National Bank of Fajairah, Bank Street, Dubai, (iii) National Bank of Ras Al Khalmah (RAK Bank), Makhtoum Street Branch, Dubai, (iv) National Bank of Ras Al Khalmah (RAK Bank) & (v) HSBC (UAE), Ibn Batuta Branch, Dubai and will be bound by the assurance given, to obtain the details of the said bank accounts as required by the respondent No.1 to submit the same either immediately through email or on her return to India, as required by the SFIO.

(v) The applicant shall furnish a personal bond and a surety bond in the sum of Rs.1,00,000/- each to the satisfaction of the Chief Metropolitan Magistrate, Rouse Avenue, Delhi.

(vi) The applicant shall also deposit a sum of Rs.5,00,000/- in the form of FDR in the name of the Registrar General of this Court which may, on application be returned to the applicant on her return to India.

9. With the aforesaid, the application stands disposed of.

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10. List on 6th December, 2022.

11. The order be uploaded on the website forthwith.

(ASHA MENON) JUDGE JUNE 01, 2022 ck